

Contentious Chamber

Decision on the merits 171/2023 of December 22, 2023

File number: DOS-2020-02242

Subject: Complaint regarding a refusal to delist by a search engine

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, president, and Messrs. Jelle Stassijns and Yves Poulet, members, resuming the case in this composition;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter LCA);

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, represented by Maître Caroline Carpentier, lawyer, whose office is located at 1050 Brussels, Avenue du Congo, 1, hereinafter referred to as "the complainant."

The defendants: Google LLC, a company under the law of the State of Delaware, whose headquarters is located at 1600 Amphitheatre Parkway Mountain View, CA 94043, California, United States of America, hereinafter referred to as "the first defendant";

Google Belgium SA, whose registered office is located at Chaussée d'Etterbeek 180 in 1040 Brussels (Etterbeek) and registered with the Crossroads Bank for Enterprises (CBE) under number 0878.065.378, hereinafter referred to as "the second defendant";

Both represented by Maître Gerrit Vandendriessche and Maître Louis-Dorsan Jolly, lawyers, whose office is located at 1000 Brussels, Avenue du Port 86C, B414;

Hereinafter collectively referred to as "the defendants."

*

I. Facts and Procedure

1.

The subject of the complaint concerns the refusal by the first defendant to comply with the request for removal made by the complainant regarding the URLs listed below from the results of a search conducted on the Google search engine based on the complainant's usual name and surname:

-

[...]

-

[...]

2.

The complainant reports that regarding these links, in its electronic editions of certain months of the year 2014, the concerned press publisher published articles containing serious accusations against the company of which he was an administrator. The morality of the leaders of this company – of which the complainant was specifically named – was directly called into question, with the complainant (like others) being accused of mistreatment of residents of the establishments managed by said company. These articles were also subject to a right of reply from the latter. The complainant also reports that an investigation report was conducted by the supervisory authority of these establishments (Z) – a report which he submits as evidence in support of his complaint – and that this report completely refuted the accusations made in the said articles.

3.

On March 16, 2020, the complainant submitted a request for delisting to the Google search engine,

requesting the removal of the search results for the 2 URLs mentioned in point 2 (request no. 2-4543000029445).

4.

On March 17, 2020, the complainant received a negative response to his request, motivated by the fact that following the examination of the balance of rights conducted by the search engine, including factors such as the relevance of the information in the context of the complainant's professional life, it could not be favorably responded to his request for delisting.

5.

On May 11, 2020, the complainant filed a complaint with the Data Protection Authority (DPA) against the defendants regarding this refusal. The complainant argues

Decision on the merits 171/2023 – 3/11

that these press articles published six years earlier – which undeniably contain personal data concerning him – are obsolete and disseminate data that is no longer adequate, relevant, or limited to what is necessary in light of the public information purpose for which they were processed. The complainant emphasizes in this regard the absence of publication of the right of reply communicated on one hand and the fact that the report of Z (point 2 above) concluded that the alleged breaches were not established on the other hand. He adds that he no longer holds any position in the concerned company and has not done so for three years at the time, and that he has never played a particular role in public life nor could be considered a public or media figure. He concludes that, in support of these various elements, the publication of his name and surname no longer holds any interest for the public. Therefore, he argues that the search engine Google wrongly refused to delist the disputed URLs, as their continued presence is likely to cause considerable harm to his honor and professional reputation.

6.

On May 12, 2020, the complainant's complaint is declared admissible by the First Line Service (SPL) of the APD based on Articles 58 and 60 of the LCA and is transmitted to the Litigation Chamber under Article 62, § 1 of the LCA.

7.

On September 11, 2020, the Litigation Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the case can be examined on its merits.

8.

On the same date, the parties concerned are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendants' response conclusions is set for October 23, 2020, the deadline for the complainant's reply conclusions is set for November 16, 2020, and the deadline for the defendants' reply conclusions is set for December 8, 2020.

9.

On September 23, 2020, the defendants agree to receive all communications related to the case electronically and express their intention to avail themselves of the opportunity to be heard in accordance with Article 98 of the LCA.

10.

On October 8, 2020, the complainant's counsel informs the Litigation Chamber of his client's wish to withdraw the complaint he filed against the defendants and to desist from the claims made against them. The complainant states that, indeed, following the delisting of the two disputed URLs carried out in the meantime on the search engine, his complaint has become moot, so that, in his view, the legal basis for continuing the examination of this complaint before the Litigation Chamber has disappeared.

Decision on the merits 171/2023 – 4/11

11.

On October 12, 2020, the defendants inform the Litigation Chamber that the first defendant has indeed delisted the URLs subject to the complaint from its search engine following a search of the complainant's name. The defendants add that they accept the withdrawal of the complaint and the

complainant's desist, and that they share the complainant's position that the complaint has become moot and should be dismissed.

12.

The defendants further state that they oppose the publication, even in an anonymized or pseudonymized manner, of any decision of the Litigation Chamber in this case. Finally, they specify that if the Chamber were to decide to continue the procedure in this matter, they reserve the right to defend themselves in writing and orally during a hearing.

13.

On October 22, 2020, the Litigation Chamber invites the parties to conclude on their request not to publish its decision of potential dismissal (if such were indeed the decision adopted at the conclusion of the case). The deadlines for concluding are then set as follows: November 6, 2020, for the submission of the defendants' response conclusions; November 23, 2020, for the submission of the complainant's reply conclusions; and December 8, 2020, for the submission of the defendants' reply conclusions.

14.

On November 5, 2020, the Litigation Chamber receives the conclusions of the defendants. In these, the defendants specify that since the procedure is moot in light of the commitments made by the parties in their confidential transaction, they do not consider it appropriate for a hearing to take place. Regarding the publication of the decision to be made, they specify that they primarily request that the decision not be published and, in the alternative, that the decision be published with pseudonymization of the data concerning them.

15.

The defendants base their requests on the following considerations:

(1) the publication of the decision is, under Article 100 of the LCA, a sanction that the Litigation Chamber may adopt on a case-by-case basis. The defendants believe that such a sanction would not be justified in this instance given the withdrawal that has occurred and, consequently, the mootness of the complaint. If publication were to serve an informational purpose, the defendants believe it would not be justified since the public would have no interest in being informed of a decision made at the conclusion of a procedure that has become moot.

(2) in the alternative, if the decision were to be published, its non-pseudonymized publication would violate the principle of legality of incriminations and penalties as it would constitute an additional sanction compared to the publication.

Decision on the Merits 171/2023 – 5/11

pseudonymized as the Contentious Chamber has become accustomed to ordering. The defendants rely in this regard on Article 7bis of the Penal Code (according to which the publication or dissemination of a decision is a penalty applicable to offenses committed by legal entities), the LCA and its preparatory works, as well as on the Law of May 5, 2019 (which they indicate establishes the principle of omitting data that allows for the direct identification of the parties and other persons involved in the case) to conclude that only a pseudonymized publication of the decision would be lawful.

16. On November 5, the complainant also informs the Contentious Chamber that he does not intend to take a position on the question of the future publication or not of the decision to be made on the APD website and refers to the sovereign decision that will be made by the Contentious Chamber in this regard.

II. Motivation

17. The file submitted for examination by the Contentious Chamber concerns the exercise by the complainant of his right to erasure. The request concerns two links referenced in the results provided by the search engine operated by Google when the complainant's usual name is entered as a search criterion.

18. As previously stated, the search engine did not respond favorably to the complainant's request based on the reasoning summarized in point 4 above. Following this refusal, the complainant filed a complaint with the APD.

19. As also stated, the complainant withdrew his complaint during the proceedings, and the defendants accepted this withdrawal (points 10 and 11). The disputed URL links have been de-referenced.

20. The Contentious Chamber relies in this case on its Policy Note on Non-Pursuit, which clarifies certain elements of the procedure and establishes priorities, to classify the present complaint as non-pursued based on Article 100, § 1, 1° of the LCA.

21. More specifically, the Contentious Chamber relies on criterion A.6. of its Policy on Non-Pursuit, of which the present file is, in its view, an illustration.

1 The Contentious Chamber understands that the defendants refer to the Law of May 5, 2019, amending the Code of Criminal Procedure and the Judicial Code regarding the publication of judgments and rulings.

Decision on the Merits 171/2023 – 6/11

22. According to its aforementioned policy on non-pursuit, the withdrawal of the complaint by the complainant generally implies a classification as non-pursued unless exceptional circumstances justify that the file not be classified as such.

23. Indeed, the review by the Contentious Chamber is not so much aimed at resolving disputes between parties but rather to be one of the instruments available to the APD to ensure compliance with the rules regarding data protection, in accordance with the provisions of European treaties, the GDPR, and the LCA. Thus, if a complaint is filed and then forwarded for examination to the Contentious Chamber as an admissible complaint, the Contentious Chamber must assess whether the reported facts constitute a violation of one of the legal provisions whose compliance is subject to the oversight of the APD. This review also extends to the evaluation of breaches that the complainant may not have directly identified himself and that the Contentious Chamber would subsequently raise in accordance with the adversarial principle. The mere fact that the complainant withdraws his complaint (as well as the fact that the breach may have been remedied during the proceedings, for example) does not eliminate any violation that may have been committed by the data controller nor does it deprive the competent bodies of the APD, including the Contentious Chamber, of the exercise of their respective powers.

24. In other words, the withdrawal of his complaint by the complainant does not divest the Contentious Chamber of the file. This withdrawal is an element that it will duly consider in order to, if necessary, classify the complaint as non-pursued (point 22 above). Circumstances specific to the file may therefore justify that, notwithstanding the withdrawal of the complaint, the Contentious Chamber continues its examination of it in the exercise of its competence as recalled in point 23 above.

25. The file concerns in this case the exercise by the complainant of his right to erasure. This right is to be considered as a major protection for the individuals concerned. It is certainly closely linked to the complainant's willingness to exercise his rights. At the same time, regarding a request for de-referencing of press articles on a search engine, the exercise of this right can only be satisfied after an analysis that balances the complainant's right to data protection on the one hand with the public interest in the accessibility of this information on the other hand. Depending on whether priority is given to one or the other of these rights balanced against each other, the request for erasure (de-referencing) will or will not be granted. In other words, it is not solely a matter of exercising an individual right but also of the general public interest in having easy access to this information.

2 See in this regard the decision 41/2020 of the Contentious Chamber (point 12).

Decision on the merits 171/2023 – 7/11

26.

The Contentious Chamber emphasizes in this regard that it is the exercise carried out by the first defendant in her capacity as data controller, arriving at the conclusion on March 17, 2020 (point 4) that primacy should be given to public accessibility to the information concerned.

27.

As stated above, following a settlement agreement reached with the defendants once a complaint was filed by the complainant before the Data Protection Authority (APD), the complainant withdrew his complaint. The Contentious Chamber is unaware of the content of this agreement and the conditions

under which this withdrawal occurred, particularly regarding any potential consideration (financial? production of documents by the complainant?) and, if applicable, for what reasons there would have been, once the complaint was filed with the APD, a reversal of the balance of rights in favor of the complainant and not the right to public information in the general interest, the complainant indicating that the disputed links have been de-referenced. The Contentious Chamber opposes any potential practice that would involve negotiating the withdrawal of a complaint in exchange for financial consideration.

28.

In the absence of being able to access the content of the agreement and the conditions under which it was obtained, the Contentious Chamber can only note that it is unable to establish that exceptional circumstances would justify the continuation of the examination of this grievance of the complaint. In other words, the Contentious Chamber considers that in this case, the fact that the complainant informed it of his intention to no longer exercise his right – via the aforementioned withdrawal conclusions – has emptied the file of the legal questions concerning this point. As stated above, the Contentious Chamber could reach a different conclusion in other cases of this type.

29.

In conclusion, after reviewing the file, the Contentious Chamber believes that it does not fall, in light of all the grievances raised, into the category of cases presenting exceptional circumstances that would justify the complaint not being dismissed.

30. Therefore, the Contentious Chamber decides to dismiss it for the reasons stated above.

III. Regarding corrective measures and sanctions

31.

Pursuant to Article 100.1 of the LCA, the Contentious Chamber has the power to:

1° dismiss the complaint;

3 The Contentious Chamber specifies that this does not apply regarding the parties' agreement on the publication of the decision, which falls exclusively within its own prerogatives (see below Title IV).

Decision on the merits 171/2023 – 8/11

2° order a dismissal;

3° pronounce a suspension of the ruling;

4° propose a settlement;

5° issue warnings or reprimands;

6° order compliance with requests from the concerned person to exercise their rights;

7° order that the interested party be informed of the security issue;

8° order the freezing, limitation, or temporary or permanent prohibition of processing;

9° order compliance with processing;

10° order the rectification, restriction, or deletion of data and notification of such to the recipients of the data;

11° order the withdrawal of the accreditation of certification bodies;

12° impose penalties;

13° impose administrative fines;

14° order the suspension of cross-border data flows to another State or an international organization;

15° refer the file to the Public Prosecutor of Brussels, who informs it of the follow-up given to the file;

16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

32.

In matters of dismissal, the Contentious Chamber must justify its decision step by step and:

- pronounce a technical dismissal if the file does not contain or does not sufficiently contain elements likely to lead to a sanction or if it contains a technical obstacle preventing it from making a decision;
- or pronounce an opportunistic dismissal, if despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate in light of the priorities of the APD as specified and illustrated in the Contentious Chamber's Policy on Dismissals.

4 Brussels Market Court (Court of Appeal of Brussels), September 2, 2020, 2020/AR/329, p. 18.

5

<https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

Decision on the merits 171/2023 – 9/11

33. In the event of a dismissal based on multiple grounds (respectively, technical and/or opportunistic dismissal), the grounds for dismissal must be addressed in order of importance.

34. In the present case, the Litigation Chamber decides to proceed with a technical dismissal based on Article 100.1.1° of the LCA due to the withdrawal of the complaint by the complainant and the impossibility of demonstrating any violation of the GDPR or other standards for which the Data Protection Authority (DPA) is responsible for oversight that could be attributed to the defendants.

IV. Publication of the decision

35. Given the importance of transparency regarding the decision-making process of the Litigation Chamber, this decision is published on the website of the Data Protection Authority (DPA).

36. The Litigation Chamber cannot grant the request of the parties not to publish this decision.

37. In accordance with its Publication Policy for its decisions, the Litigation Chamber publishes each of its decisions with the aim of administrative transparency, which is required both in terms of its missions as a data protection oversight authority (Article 57.1. b) and d) read in conjunction with Article 51 of the GDPR) and as an administrative authority subject to the principles of good administration. It is in this regard that this decision is published. In this respect, the Litigation Chamber ensures that its decision regarding publication is listed under the "Publication" section and not under the "Regarding corrective measures and sanctions" section.

38. This publication also aims to give visibility to the work of the DPA (role of informing and raising awareness among businesses and citizens, including the press), work for which it must report publicly (both to political decision-makers and the general public). The independent administrative authority status of the DPA, as well as its extensive missions and powers, indeed justifies that it must publicly account for its work and allow everyone to access its positions in an easy and transparent manner. Finally, one of the missions of the Litigation Chamber is also to establish coherent case law. To this end, and so that the interested public can appropriate it, it is essential that it publishes its decisions, including the present one. The age of the file and the fact that publishing this decision could bring attention back to the complainant, who specifically requested the delisting of the aforementioned press articles, are arguments that the Litigation Chamber takes into account not by refraining from publishing the decision but by omitting the direct identifying data of the complainant (see below) as well as, as far as possible and within the limits described by its Policy on dismissals, omitting the indirect identifying data of the latter given, specifically in this case, the age of the file and the withdrawal of the complaint.

39. As highlighted in its aforementioned Policy, unlike the publication of the decision under "sanction," the issue of identifying the parties is less important in the context of publication for transparency purposes as in this case. The sought objective can indeed be achieved whether the parties are identified or not. The Litigation Chamber nonetheless specifies that the publication of the identifying data of legal entities is sometimes justified for reasons of public interest, due to the position of the data controller in society or the importance of the decision for the general public.

40. In this regard, the Litigation Chamber believes that the publication of this decision with the identification of the defendants serves several objectives. Firstly, it aims at a public interest objective given the importance of the search engine "Google" for many internet users and the fact that a very large number of people residing in Belgium are referenced in one way or another by said search engine. The Litigation Chamber finds it relevant to give this decision publicity that raises awareness among internet users of the rights they have under the GDPR, even if the outcome of this case is a decision of dismissal. In this respect, even though the decision directly concerns only the complainant (whose identifying data is not published), it is also of interest to a large part of the general public. The identification of the defendants is also necessary for the proper understanding of the decision and thus for the realization of the transparency objective pursued by the publication policy of the Litigation Chamber's decisions.

In accordance with Article 108, § 1 of the LCA, an appeal against this decision may be filed within thirty days from its notification to the Market Court (Court of Appeal of Brussels), with the Data Protection Authority as the defendant. Such an appeal may be initiated by means of an interlocutory application which must contain the information listed in Article 1034ter of the Judicial Code. The interlocutory application must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(sé). Hielke HIJMANS

President of the Litigation Chamber

8 The application must contain, under penalty of nullity:

1° the indication of the day, month, and year;

2° the name, first name, and address of the applicant, as well as, where applicable, their qualifications and national register number or business number;

3° the name, first name, address, and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds for the application;

5° the indication of the judge who is seized of the application;

6° the signature of the applicant or their lawyer.

9 The application, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed at the registry.

FOR THESE REASONS,

the Litigation Chamber of the Data Protection Authority decides, after deliberation, to dismiss the present complaint without further action in application of Article 100, § 1, 1° of the LCA.